

2011 SCC OnLine All 2381 : (2012) 3 All LJ 471

Allahabad High Court
(Lucknow Bench)
(BEFORE DEVI PRASAD SINGH AND DR. SATISH CHANDRA, JJ.)

Bhajan Lal and Anr.

Versus

Executive Engineer Electricity Distribution Khand-1,
U.P. and Ors.

Writ. P. Bench No. 8693 (M/B) of 2011
Decided on October 17, 2011



Page: 472

JUDGMENT

1. Heard Shri A.K. Pandey, learned counsel for the petitioners and Shri Kapil Misra, learned counsel for the opposite parties and perused the record. With the consent of the parties' counsel, we proceed to decide the writ petition at admission stage.

2. Executive Engineer, Shri Brij Mohan is present in person. Shri Kapil Misra, learned counsel for the opposite parties states that in pursuance to the fresh assessment order, the amount has been deposited by the petitioners. The Statement given by Shri Kapil Misra has been admitted by Shri A.K. Pandey.

3. The instant writ petition under Article 226 of the Constitution of India has been preferred for the following relief:—

- “(i) Issue a writ, order or direction in the nature of Certiorari quashing the impugned recovery notice/certificate dated 1.8.2011 issued by the opposite parties against the petitioners contained in Annexure Nos. 1 & 2 to this writ petition.
- (ii) Issue a writ, order or direction in the nature of Mandamus commanding the opposite parties not to take any coercive action or make any recovery proceedings in pursuance of the aforesaid recovery certificates.
- (iii) Issue a writ, order or direction in the nature of Mandamus commanding the opposite parties to redress the petitioners' grievance and issue a corrected bill as per their load and

connection and then realize the same from the petitioners.

- (iv) Issue any other writ, order or direction which this Hon'ble Court may deem fit and proper under the circumstances of the case.
- (v) Award the costs of the writ petition in favour of the petitioners."

4. It appears that earlier the petitioners had preferred a writ petition No. 3564 (MB) of 2009, which was disposed of by judgment and order dated 10.4.2009 permitting the petitioners to raise dispute with regard to electricity charges before the executive engineer concerned. Operative portion of the judgment and order dated 10.4.2009 is reproduced as under:—

"Accordingly, on account of availability of alternative remedy, no case for interference under Art. 226 of the Constitution of India is made out. However, it is provided that in case the petitioners move a representation within two weeks from today, the Executive Engineer concerned shall decide the same in accordance with law by passing a speaking and reasoned order expeditiously and preferably within a period of two months from the date of receipt of a certified copy of this order along with the representation and communicate the decision to the petitioners. For a period of two months or till disposal of the representation, whichever is earlier, the recovery proceedings shall remain suspended.

Subject to above, the writ petition is finally disposed of.

No order as to costs."

5. Learned counsel for the petitioners submits that in spite of the fact that the aforesaid judgment of this Court (supra) was communicated to the respondents, they have neither been served any notice nor the controversy has been adjudicated by the authorities. However, without taking note of the order passed by this Court, the impugned notice annexure Nos. 1 and 2 to the writ petition has been issued requiring the petitioners to pay the same amount. Feeling aggrieved, the petitioner has preferred the present writ petition.

6. On a query made by the Court, the Executive Engineer has given statement that the notices were sent but the petitioners did not turn up. The Executive Engineer informed that the notices were sent by ordinary post, which has been denied by the petitioners. It is further stated by the Executive Engineer that ordinarily the notices are sent by ordinary post.

7. Attention has been invited to para 6.8 of the U.P. Electricity Supply Code, 2005. Clause (b) of the said Code provides that in case the Assessing Officer reaches to a conclusion that

unauthorized use of Electricity has taken place, he shall serve a provisional assessment bill along with show cause notice to the consumer giving 15 working days for submission of reply under proper receipt fixing a date and time of hearing. Clause (b) of para 6.8 of the Code is reproduced as under:—

“If the Assessing Authority reaches to a conclusion that Unauthorized Use of Electricity has taken place (as defined under Explanation to Section 126 of the Act), he shall serve a provisional assessment bill along with show cause notice to the consumer giving 15 working days for submission of reply under proper receipt fixing a date and time of hearing. The notice shall invite objections in writing from the consumer, against the charges and provisional assessment and require presence of the consumer on the date of hearing.”

8. A plain reading of aforesaid provision reveals that it shall be incumbent on the assessing officer to serve not only the notice but also to serve the provisional assessment bill along with notice while inviting response within a period of fifteen working days. It means that while calling response within fifteen working days Sunday and other holidays should be excluded. *Provision* (supra) further reveals that the legislature to their wisdom has used the words “under proper receipt”, meaning thereby it shall be incumbent on the assessing authority or the executive engineer to ensure that notice has been served on the consumer. Sending of notice by ordinary post does not give a presumption that notice has been served upon the petitioners.

9. In view of above, it shall be incumbent on the assessing authority to ensure that the notice is served within 15 clear working days calling response from the consumer by ordinary letter without any postal receipt will not suffice. Notice should be served along with provisional assessment bill by authentic mode of service like registered post, personal service or publication in news paper and it must be ensured that the notice has been served.

10. Accordingly, the department has to adopt recourse of substituted service like personal service, registered post or in appropriate case, if necessary by publication in news paper. Needless to say that valuable right in the form of fundamental right guaranteed by Article 14 of the Constitution is available to consumer to file objection in response to notice or the provisional assessment bill. Non-compliance of principle of natural justice shall vitiate the entire proceeding and order passed by the assessing authority or the Executive Engineer concerned shall vitiate. To protect fundamental right guaranteed by Article 14 of the Constitution of India while proceeding ahead to serve notice in pursuance to Clause (b) of para 6.8 of the U.P. Electricity Supply Code 2005. it shall be incumbent on the

Executive Engineer or the assessing authority to serve notice, if necessary, by adopting all three modes i.e. personal service, by registered post or by publication in news paper. Needless to say that initially it is incumbent on the authorities to serve notice by registered post and by personal service both simultaneously. In case both fails, then publication in newspaper may be adopted. 1

11. Keeping in view the moral devaluation in the system of governance, it is necessary for the assessing authority concerned to keep transparency and take all necessary steps and ensure that notice sent by it is duly served on the consumer. In case there is deliberate attempt on the part of consumer avoiding the notice, then after publication in newspaper, the assessing authority may proceed ex parte and decide the dispute in accordance with law.

12. During the course of hearing, it has been informed that fresh assessment has taken place in response to which, the petitioners have deposited the dues.

13. Hence nothing remains for adjudication by this Court.

14. However, keeping in view the cases filed before this Court from time to time with the grievance that without serving a notice, recovery proceedings are initiated against the consumer, we direct the Chairman, Power Corporation to issue appropriate order or Circular keeping in view the observation made hereinabove to all concerned authorities to ensure that notices are served on the consumer, in terms of above, only thereafter the decision should be taken with regard to electricity charges.

15. Shri Kapil Misra, learned counsel for



Page: 474

the opposite parties shall communicate the order passed today to the Chairman, U.P. Power Corporation for compliance and submit a compliance report within one month.

16. Subject to aforesaid observation, the writ petition stands disposed of.

17. *Order accordingly.*

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